

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

CIVIL REVISION NO. 2763 OF 2021

Kamal Uddin Khan and others

..... Petitioners

-Versus-

Rafiq Uddin Khan @ Mantu being dead his legal
heirs;

Shahjadi Halima Sultana and others

...Opposite Parties

Mr. Ranjit Kumar Barman, Advocate.

...for the petitioners

None appears.

... for the opposite

parties

Date of hearing: 17.07.2023 and 18.07.2023

Date of Judgment: 25.07.2023

A.K.M. Rabiul Hassan, J:

This rule is directed against the order dated 23.01.2020 passed by the learned Joint District Judge, 1st Court, Kishoregonj in Other Class Appeal No. 207 of 2014 rejecting the application under Order VI rule 17 read with section 151 of the Code of Civil Procedure.

At the time of issuance of the rule, this court was pleased to pass an order of stay all further proceedings of Other Class Appeal No. 207 of 2014 now pending in the Court of Joint District Judge, 1st Court, Kishoregonj for a period of 6 (six) months. This court was also

pleased to pass an order of status quo in respect of possession and position of the suit land for a period of 6 (six) months. Finally, on 05.02.2023 the said order of stay and status quo was extended till the disposal of the rule.

Facts relevant for disposal of rule, in short, is that the petitioners as plaintiffs instituted a suit being Other Class Suit No. 09 of 2010 in the court of learned Senior Assistant Judge, Kishoregonj impleading the opposite parties as defendants for a declaration of title as described in the schedule of the plaint. The predecessor of opposite party Nos. 1(ka) -1(ga) as defendant No. 1 entered an appearance and contested the suit by filing a written statement denying the material allegations contended in the plaint. After the conclusion of the trial, the learned Senior Assistant Judge, Kishoregonj vide judgment and decree dated 30.04.2014 dismissed the suit. Being aggrieved, the plaintiffs as appellants preferred an appeal being Other Class Appeal No. 207 of 2014 before the learned District Judge, Kishoregonj, who transferred the said appeal to the learned Joint District Judge, 1st Court, Kishoregonj for disposal. Thereafter, pending the hearing of the appeal, the appellants filed an application under Order VI rule 17 for amendment of the plaint in the said appeal. Subsequently, the appellate court below after hearing the same rejected the said application for amendment of the plaint. Being aggrieved, the plaintiffs-appellants-petitioners preferred this revisional application

before this court under Section 115(1) of the Code of Civil Procedure and obtained the instant Rule and stay.

Mr. Ranjit Kumar Barman, the learned Advocate appearing on behalf of the petitioners supports the instant rule and submits that the proposed amendment will not change the nature and character of the suit. The lower court's lawyer categorically described the number of suit khatians in the plaint but inadvertently failed to describe the respective portion of both parties in respect of the suit land of those khatians i.e. S.A. Khatian Nos. 7 and 81 in paragraph 3 of the plaint and in connection to the same in the prayer portion, which was very much necessary for adjudication. It is now a settled principle of law that an appeal is the continuation of the original proceeding and therefore amendment at a belated stage can be made by either party. The proposed amendment is necessary for determining the real question in controversy by the parties.

He further submits that the plaintiffs-petitioners did not bring anything new in the application for the amendment to fill up the lacuna but rather wanted to clarify their case which they had failed to state earlier. If the proposed amendment is allowed, there is no possibility of causing injustice to either of the parties. In support of his contentions, the learned Advocate for the petitioners cited the decisions reported in 26 BLT (AD) 49.

On the other hand, none appears on behalf of the opposite parties to oppose the rule.

I have carefully examined the revisional application, the impugned order passed by the court below, the papers and documents annexed thereto, heard the submission of the learned Advocate for the petitioners, and perused the materials on record.

In the amendment application, the plaintiffs-petitioners have prayed for the inclusion of the following statements:

- ১) আরজির ৩নং প্যারার শেষে যোগ হইবে যথাঃ “প্রকাশ থাকে যে, নালিশা আরজির তপছিল বর্ণিত বাদীগনের ৯৩/১০০ অংশ ও ১ নং রেসপনডেন্ট এর ৭/১০০ অংশ ভূমিতে স্বত্ববান দখলকার থাকা স্বত্বেও ও চক্রান্তমূলকভাবে বিবাদী রেসপনডেন্ট চক্রান্তমূলকভাবে নালিশা দলিল সৃজন করিয়াছেন বটে”
- ২) আরজির প্রার্থনা দফায় “ডিক্রী” এর পর লিপি হইবে যথা “সহ নালিশা আরজির তপছিল বর্ণিত ভূমি মধ্যে ৯৩/১০০ অংশ ভূমিতে বাদীগনের স্বত্ব ঘোষণার ডিক্রী দিতে”

Upon perusal of the above, it appears that by the proposed amendments the plaintiffs–petitioners sought to insert a statement related to the respective portion of the land of the plaintiffs and defendants over the suit land in the khatians in paragraph number 3. The other amendment is in the prayer ‘ক’ after the word ‘ডিক্রী’ in the last line regarding the portion of land for the title of the petitioners. By these amendments, the petitioners are not introducing any new facts rather they are specifying the portions of land of the respective parties in the suit and also in connection to the same,

describing the petitioners of land more specifically based on the genealogy of their titles.

In *Managing Committee N.M.C. Model High School and others vs. Obaidur Rahman Chowdhury and others* 31 DLR (AD) 133, it has been held, “amendment of the pleadings could be allowed at any stage of the proceedings for the purpose of determining the real question of controversy between the parties, but it could not be allowed, if, it changed the nature and character of the suit or if the prayer for amendment had become barred by lapse of time and a right had accrued to the other side”.

In *Shah Afzal Arafin Abu Shafiq and others vs. Fazle Elani Md. Asaduzzaman Khalif (Makhan) and others* 9 BLT 359 it has been held, “that the settled law for the amendment of pleadings is that a prayer for amendment should be considered liberally for bringing all possible controversies between the contending parties in a single suit for complete and effective adjudication of the suit by avoiding multiplicity of litigations.”

The actual purpose of Order 6 Rule 17 of the Code of Civil Procedure (CPC) in the legal system is to advance the cause of justice rather than impede it. Courts exist to do full justice to the parties, and that can be done only when the real issue between the parties is heard, therefore, Courts are empowered to grant amendments to pleadings. The courts must not refuse any amendments that are bona fide,

necessary, and honest. The purpose is to determine the real issue between the parties and not punish them for their mistakes or negligence.

In the present case, it appears that the plaintiffs-petitioners proposed amendments are bona fide, necessary, and honest.

In view of the decisions cited above and relevant provisions of law, such type of amendment of the plaint will not change the nature and character of the suit. The amendment will not also prejudice the defendants-opposite parties because the defendants have every opportunity to controvert the amended facts and claim by way of filing additional written statements if any at the present stage.

It further transpires to this court that the original suit was filed in year of 2010 and the amendment application was filed in the year of 2019 long after nine years before the appellate stage and the appeal is still pending for disposal. In considering the delay in filing the said amendment application as well as the necessity to file the amendment application by the plaintiffs-petitioners, this court thinks fit that proper ends of justice would be met if the plaintiffs-appellants-petitioners are allowed to amend those facts in the plaint at this belated stage in the appeal subject to payment of cost.

Under the reasoning and observation as made above, this court finds merit in the instant Rule.

Accordingly, the Rule is made absolute, the impugned order is hereby set aside. The application for amendment of the plaint is allowed with a cost of Tk.5,000/- (Taka Five Thousand) to be paid to the contesting defendants – respondents within 1 (one) month from receiving the copy of this order by the concerned court, failing which the application for amendment of plaint shall stand rejected.

The appellate Court is hereby directed to dispose of the appeal on merit within 6 (six) months positively without giving any unnecessary adjournments to either party.

The order of stay and status quo granted earlier by this Court stands vacated.

Communicate this judgment and order at once.

(A.K.M. Rabiul Hassan, J)